

IN THE HIGH COURT OF KARNATAKA AT KALABURAGI

PRESENTATION FORM

WP No. : 9/2025

203118

Kalaburgi District

Serial No. _____

Advocate Sri

R. S. Kadganchi

R. No. KAR-1295/99

Smt. N. R. Kadganchi

R. No. KAR-2013-00

ADVOCATES

Plot No. 159, Station Area, KALABURAGI-02

Cell 9845924342, 9880363658

between

The HKE's Society
1 etc.

And

The State of Karnataka
1 etc.

Sl. No.	Description of Paper Presented	Court Fee Affixed on the Paper
1.	On the Memo of <u>Writ</u> Petition	
2.	On the Memo of Appeal	
3.	On Vakalath	
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Advocate for Petitioner

Appellant / Respondent

Advocate's Clerk

Date 13/10/2025

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Gulbarga

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IN THE HIGH COURT OF KARNATAKA KALABURAGI BENCH

(Original Jurisdiction)

Writ Petition No. /2025

BETWEEN

The HKE Society & others

...Petitioners

AND

The State Of Karnataka & others

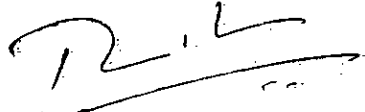
.. Respondents

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Date: 13.10.2025
Place:- Kalaburagi


Advocate for petitioners
R.S. Kadganchi

U

IN THE HIGH COURT OF KARNATAKA KALABURAGI BENCH

Writ Petition No.

/2025

BETWEEN

The President HKE Society

...Petitioners

AND

The State of Karnataka & others,

... Respondents

SYNOPSIS

1.	31/10/1967	The land Sy No 184 was allotted to petitioner Society.
2.	11/10/1990	The Sanga named Beerlingeshwar filed suit against petitioner in OS No 111/1990
3.	11/01/2000	The Sanga named Beerlingeshwar filed other suit against petitioner in OS No 18/2000
4.	12/01/2001	Both the suits were dismissed.
5.	22/02/2001	The said Beeralingeshwar Sanga filed RA
6.	28/03/2007	The RA No 09/2001 was dismissed
7.	23/05/2023	RSA No 1870 of 2007 filed by Beeralingeshwar Sangha was also Dismissed
8.	25/09/2023	Hon'ble Supreme Court issued notice to petitioner in SPL filed by Beeralingeshwar Sangha.
9.	15/07/2025	Petitioner informed R No 5 through representation regarding pendency of SLP
10.	17/07/2025	Respondent No 3 passed the order , now

Nil

		challenged
11	06/08/2025	Petitioner informed R No 3 through representation regarding pendency of SLP

BRIEF FACTS

That, the petitioner Society was allotted Land Sy No 184 Measuring 27 & acres 38 guntas for construction of Degree College, which was done by petitioner in the year 1967 itself, since then till today they are in peaceful possession. A suit by named Beeralingeswar filed OS against petitioner Society for Declaration of ownership which later came to be dismissed by Hon'ble Civil Court, followed By Fast Track Court in RA and Later in RSA before this Hon'ble Court were also DISMISSED. Now the matter is pending before Hon'ble Supreme Court for consideration in SLP (Civil) 1822 of 2023. Meanwhile without taking into consideration this fact and also without following the rules of Karnataka Land Grant Rules No 25 of 1969 this order under challenge is passed by respondent No 3. As a result the petitioners have approached this Hon'ble Court through this Writ Petition.

Date: 13.10.2025
Place: Kalaburagi


R.S. Kadganchi
Advocate for petitioners

C

IN THE HIGH COURT OF KARNATAKA KALABURAGI BENCH

(Original Jurisdiction)

Writ Petition No.

/2025

BETWEEN

1. Hyderabad Karnatka Education Society,
SAACA Building, PDA Engineering College Campus,
Kalaburagi-585102, Represented by its President
Shashil S/o Gangadar Namoshi

2. The Principal,
HKE Society, S.S. Margol College of Arts,
Science & Commerce, Shahabad Town
Dist; Kalaburagi. 585 228

3 The Principal,
HKE's Institute Of Pharmacy
Shahabad, Dist; Kalaburgi 585 228

...Petitioners

AND:

1 The State Of Karnataka
By Principal Secretary,
Revenue Department,
M S Building, Bengalure 560 001.

2 The Regional Commissioner
Mini Vidan Soudha, Kalaburgi 585 102.

3 The Deputy Commissioner
Mini Vidan Soudha, Kalaburgi 585 102.

4 The Assistant Commissioner,
Mini Vidan Soudha Sedam 585222

5 The Tashildar
Shahabad 585228. Dist; Kalaburgi.



(7)

...Respondents

**MEMORANDUM OF WRIT PETITIONER UNDER ARTICLES
226 & 227 OF THE CONSTITUTION OF INDIA**

The petitioners are humbly submits as under:

- 1 That, the address of the petitioner for the purpose of service of summons, notices, etc. is that of his counsel Sri. R.S Kadganchi and Smt. N.R Kadganchi Advocates, MIG 46/2, Beside High Court, Near Laxmi Temple, Kalaburagi-585103 and address of the respondent for similar purpose shown in the cause title.
- 2 That, the petitioner Society is registered under Karnataka Societies Registration Act, wherein the society runs various education institutions in the part of Kalyan Karnataka since from last 60 years. The petitioner No.2 & 3 are Colleges managed by petitioner No.1 Society.
- 3 That, since the area of Hyderabad Karnataka was backward, particularly in education, the petitioner Society came to be formed for providing education, as a result the then Deputy Commissioner with due approval of Divisional Commissioner Gulbarga has granted land

- -

(5)

Sy No 184 to the extent of 29 Acres 03 Guntas vide order Dt 31/10/1967 in file no REV/835/IND/67-68, the copy of the same is produced at **Annexure-A**.

4. That, immediately there after the petitioner Society in the year 1967 established the first & the only aided degree college till today at Shahabad, subsequently the petitioner society started the first & the only Pharmacy College at Shahabad. The copy of the information submitted by the college Principal's that is Petitioners No 2 & 3 are produced at **Annexure B & C**.
5. That, one sangha by name Sri Beerlingeshwar Sangha followers of diety Sri Beeralingeswar of Kuruba community filed a Suit before Add Civil Judge (Sr-Div) Gulbarga in OS No 111/1990 " Suit for Decleration and Injunction of waste land Sy No 184 measuring 29 Acres 03 Guntas of Shahabad Town" on the ground that the land belong to them, since it was Inam Land granted to them (Temple) for rendering pooja to the said diety, and later an other Suit for Injunction was also filed in OS No 18/2000 against the present Writ Petitioner No 1, 2 and the Govt of Karnataka. Both the above suit's were

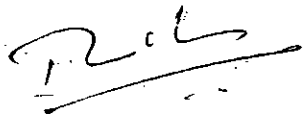
[Signature]

6/

dismissed through a common Judgement Dt 12/01/2001. The copy's of Decree are produced herein at **Annexure D & E.**

6 That, the above mentioned Sangha challenged the judgement in RA No 9 of 2001, which also came to be dismissed by Hon'ble Fast Track Court Gulbarga wide Judgement Dt 28th March 2007. The copy of the Decree is produced at **Annexure-F.** Later on the basis of the Judgement in RA No 9/2001, the name of petitioner Society was entered in the ROR, showing them as owners in possession of Sy No 184 of Shahabad Town. The Copy of ROR is produced at **Annexure-G.** The said mutation entries were challenged before Assistant Commissioner Sedam by said Sri Beeralingeswar Sangha which came to be dismissed on 11/01/2013.

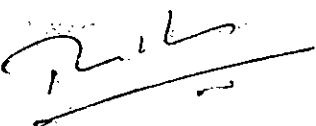
7. That, the judgment of RA No 9/2001 was again challenged before this Hon'ble Court in RSA No 1870 of 2007 which also came to be dismissed by order Dt 23/05/2023. The copy of the same is produced by **Annexure-H.**



8 That, later the said Sri Beeralingeswar Sangha challenged the order of this Hon'ble Court before Hon'ble Supreme Court Of India in Special Leave Petition (Civil) No 18822 of 2023 which is still pending for disposal. The copy of the notice served on the petitioner is produced at **Annexure - J**, and the online copy of status of the case is produced at **Annexure - J (1)**.

9 That, when the respondent Govt came up with a survey of the said land in July 2025, the petitioner submitted his representation Dt 15/07/2025 on 17/07/2025 to respondent No 5 stating that the issue of ownership is pending before Hon'ble Apex Court in SLP Civil No 1822 of 2023. 7 later the same was informed by petitioner to Respondent No 3 also through representation Dt 06/08/2025. The copy of both the representation are produced herein at **Annexure-K & K(1)**.

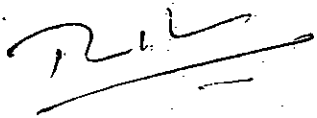
10 That, the respondent No 3 through order Dt 17/07/2025 has reserved 4 acres of land Sy No 184 of Shahabad Town for construction of Praja Soudha u/Sec 71 of Karnataka Land Revenue Act 1964, without issuing notice to the petitioner who is in possession of the said land



since its grant to it from 1967. The copy of the same is produced at **Annexure-L**, which is under challenge here in.

GROUND.

- 11 Hence the petitioners having no other alternative except to approached this Hon'ble Court through Writ Jurisdiction and no other case is pending before any
- 12 That, the order passed by Respondent No 3 is against the principal of well setteled principals of law. The order is totally arbitrarily one sided and against law.
- 13 That, the land once granted by the State Govt , if to be taken back , has to follow the rule 25 of Karnataka Land Grant Rules 1969, which is not at all followed by the respondents.
- 14 That, it is important to mentioned here that the dispute between the petitioner society and the Sri Beerlingeshwar Sangha as to the Declaration of owner ship of land Sy No 184 is still pending before Hon'ble Supreme Court in which the respondent No 3 is also the party. Without taking into consideration this factor, by making an



(9)

observation that " no case is pending before any Court of law ", this order under challenge is passed.

15 That, any land granted by State Govt can be cancelled if there is violation of conditions only after issuing notice U/sec 25 of Karnataka Land Grant Rules 1969. But in the instant case no such notice is being issued by the respondent No 3 before passing the order under challenge.

16 That, the petitioners may be permitted to urge additional grounds if any during the course of arguments/hearing.

GROUND FOR INTERIM PRAYER.

That, the respondent authorities that is Respondent No 3 has passed the order under challenge without taking into consideration the fact that the matter of ownership of land Sy no 184 of Shahabad is pending before Hon'ble Supreme Court in SLP (Civil) No 1822 of 2023 and more over the said order is passed without issuing notice to the petitioner as per Rule 25 of Karnataka Land Grant Rules.

Hence the passing of impugned order is illegal and

RIL

(10)

arbitrary, hence the petitioner prays for issue of appropriate interim directions.

PRAYER.

WHEREFORE, it is most humbly prayed before this Hon'ble Court may be pleased to

C) Issue the Writ of Certiorari or any other writ or direction to quash the impugned order of Respondent No 3 Dt 17/07/2025 produced at Annexure L in file No Rev/03/2025-26.

D) Any other writ or direction in the nature of writ which this Hon'ble Court deems fit to grant in the facts and circumstances of the case may kindly be granted in favour of the petitioners, to meet the ends of justice and equity.

INTERIM PRAYER.

Pending disposal of the above writ petition it is most humbly prayed that this Hon'ble Court be pleased to issue interim order of stay of the impugned order passed by Respondent No 3 in file Rev No 03/2025-26 Dt 17/07/2025 and further restrain the respondents from initiating any further precipitative action/construction/digging in sy No 184

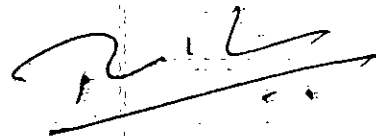
Rit

(11)

measuring 27 acers 38 guntas of Shahabad Town, pursuant to the impugned order (Annexure-L) during pendency of the above Writ for the reason stated here in above and in the interest of justice and equity.

Date; 13/09/2025

Place; Kalaburgi.



Advocate for Petitioners

R. S. Kadganchi Adv

(12)

IN THE HIGH COURT OF KARNATAKA KALABURAGI BENCH

(Original Jurisdiction)

Writ Petition No.

/2025

BETWEEN

HKE Society & others

...Petitioners

AND

The State Of Karnataka & others

.. Respondents

AFFIDAVIT

I, Basavaraj S/o Chandrashekhar Hiremath, Age:50 yrs, Occ: Principal, S. S. Margol College Shahabad town Kalaburagi-585228, do hereby solemnly affirm and state on oath as follows :

1. I am the petitioner No.2 in the top noted petition, I know the facts of the case.
2. I state that, the statements made in paragraphs 1 to 16 of the Writ Petition accompanying to this Affidavit are true to the best of my knowledge, information and I believe them to be true and correct.
3. I state that, the documents produced at **Annexure-A to L.**

What is stated in the above are true and correct to the best of my knowledge, information and belief.

Place: Kalaburagi

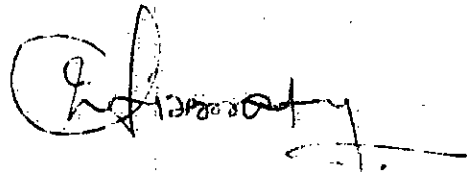
Date: 13.10.2025

Identified by me :



Advocate.

No. of corrections : ()


Deponent

(13)

ANNEXURE-A

66

Government of Mysore.

PROCEEDINGS OF THE DEPUTY COMMISSIONER GULBARGA.

Subject:- Appropriation of the land bearing S.No. 184 situated at village Shahabad Taluka Chitapur for construction of Building sites for Arts and Science college at Shahabad by the H.K.E. Society.

- Reference:-
1. Letter No. HKES/67-68/290 dated 19-6-1967 of the President of the H.K.E. Society Gulbarga.
 2. Letter No. REV/738/LND/66-67/ dated 26-8-67 from the Assistant Commissioner, Seram.
 3. Deputy Commissioner Gulbarga's letter No. 835/REV/LND/67-68 dated 16-9-67 addressed to the Divisional Commissioner, Gulbarga.
 4. Deputy Commissioner's letter No. REV/LND/67-68 835 dated 10-10-1967.
 5. Letter No. REV/2427/LND/67-68 dated 21-10-1967 received from the Divisional Commissioner, Gulbarga.

PREAMBLE:

1. The Assistant Commissioner, Seram, has requested this office vide his office reference shown at S.No. (2) that the land Survey No. 184 classified as parampoke land situated at Shahabad measuring 29 acres 3 guntas may be allotted to the Hyderabad Karnatak Education Society Gulbarga for construction of Arts and Science College at Shahabad, subject to the rights of the Dhonagar for worshipping at small temple named as Beerappa Temple occupying one Gunta in the said Survey number should not be disturbed.
2. The Divisional Commissioner, Gulbarga, in his letter shown at Sl.No.(5) has accorded sanction to reduce the gairan area required for Shahabad village to an extent of 29 acres 3 guntas of Survey No.184 of village Shahabad Tq. Chitapur and has also asked to take action according to the powers vested in the Deputy Commissioner under Sec. 71 of the Mysore Land Revenue Act 1964 to set apart the land for specific purpose and assign it to the Hyderabad Karnatak Society Gulbarga on the reasonable price. The gairan in this village is already deficit in the village.

No. REV/835/LND/67-68/

Dated: 31-10-1967.

O R D E R.

In exercise of the powers conferred on me under section 71 of the Mysore Land Revenue Act, 1964, I Ahmed Iddiqui, hereby order to set apart 29 acres and 3 guntas

contd.

2..

of Survey No. 184 classified as Government parampoke land, situated at village Shahabad Taluka Chitapur District Gulbarga for construction of Arts and Science College, at Shahabad, by the Hyderabad Karnatak Education Society Gulbarga.

Deputy Commissioner,
Gulbarga.

Copy to:-

1. Shri Mahadevappa Rampure, M.P., President of Hyderabad Karnatak Education Society at Gulbarga.
2. The Assistant Commissioner, Seram, for information and needful action. After obtaining reasonable price quibal may be issued to the said Society.
3. The Tahsildar, Chitapur for information.

Mallanur
for Deputy Commissioner,
Gulbarga. 31/10/19

CERTIFICATE
a true copy of the original
with 50 copies

TRUE COPY

Copyist Examiner
Dist. & Sessions Court
GULBARGA

(2021)

27/12/11

21/12/11

21/12/11

23/12/11

21/12/11

20/12/11

22/12/11

Shri Mahadevappa Rampure M.P.

Genl B...

(15)

ANNEXURE-B

ಹೈದರಾಬಾದ್ ಕರ್ನಾಟಕ ಶಿಕ್ಷಣ ಸಂಸ್ಥೆಯ
ಎಸ್. ಎಸ್. ಮರ್ಗೊಲ ಕಲಾ, ವಿಜ್ಞಾನ
ಮತ್ತು ವಾಣಿಜ್ಯ ಮಹಾವಿದ್ಯಾಲಯ
ಶಹಾಬಾದ್ - 585 228 - ಜಿ. ಕಲಬುರಗಿ



Hyderabad Karnataka Education Society's

S. S. Margol College of Arts,
Science & Commerce

SHAHABAD - 585 228 - Dist. Kalaburagi

Affiliated to Gulbarga University, Kalaburagi - NAAC Accredited 'B' Grade (3rd Cycle)
UGC 2(F) & 12(B) - E-mail : principal@ssmargolcollege.org - Website : www.ssmargolcollege.org

Ref No. : HKES/SSMC/ 2025-26/403

Date : 03-10-2025

TO WHOMSOEVER IT MAY CONCERN

This is to certify that HKES S. S. Margol College of Arts, Science and Commerce, Shahabad 585228 is the only one old Aided Degree College in Shahabad Taluka. **There is no other aided and government degree colleges functioning in this Taluka since 1967** is rendering its service for providing good educators to the nation for the all-round development of the resident of the Shahabad Taluka public.

At present, the total student strength of the college is 443 students and in PU College are 98 students.

PRINCIPAL
H.K.E.S. S.S. Margol College
of Arts, Science & Commerce
SHAHABAD-585228

Website : www.ssmargolcollege.org • E-mail : principal@ssmargolcollege.org

Phone : 08474 - 204473 • Fax : 08474 - 204472

16

ANNEXURE-C



ಹೈದರಾಬಾದ್ ಕರ್ನಾಟಕ ಶಿಕ್ಷಣ ಸಂಘ
ಜಿಲ್ಲಾಧಿಕಾರಿ ಕಛೇರಿ, ಹೈದರಾಬಾದ್
ಎಸ್.ಎಸ್. ಮರ್ಗೊಲ್ ಪದವಿ ಮಹಾವಿದ್ಯಾಲಯ, ಶಹಾಬಾದ್
Hyderabad Karnataka Educational Society

INSTITUTE OF PHARMACY SHAHABAD

S.S.Margol Degree College Campus, Jawagi Road, Shahabad
Tq. Chittapur - Dist. Kalaburgi - Karnataka - India
Ph : 03474 - 204472-204473 Cell : 9-13581358

Recognised by : Approved by PCI New Delhi and Govt. of Karnataka

Ref. No. : HKES/10/51/2025-26/43

Date : 03/10/2025

TO WHOM SO EVER IT MAY CONCERN

This is to certify that HKES's Institute Of Pharmacy, S S Margol Degree College Campus Shahabad is the only Pharmacy college in the Shahabad Taluka. There is No other Pharmacy college functioning in this Taluka.

At present , the Total Student Strength of the college is D pharm Part I – 35 Students & D pharm Part II – 30 Students for D pharm course

PRINCIPAL
HKES'S Institute of Pharmacy
Shahabad

HKES'S Institute of Pharmacy
Shahabad

IN THE COURT OF THE ADDL.CIVIL JUDGE (SR.DN.) AT GULBARGA.

O.S.No.18/2000

Date of Institution: 11.1.2000

Date of Disposal : 12.1.2001

"Beerappa Betta" Trust of Village Shahabad,
Tq.Chittapur, Dist.Gulbarga, through its
Secretary Annarao S/o Nagappa Kuntan, age 40 yrs,
Occ: ABL Employee, R/o Shahabad, Tq.Chittapur.

-Vs-

... Plaintiff

1. The Executive Engineer, Urban Water Supply and Drainage Board, Khuba Plots, Gulbarga.
2. The State of Karnataka, through the Deputy Commissioner, Gulbarga.
3. The H.K.E.Society, Gulbarga, through its President.

Claim : Suit for Injunction.

Valuation: This suit is valued for the purpose of jurisdiction and for Court fee at Rs.2000/- and Court fee paid is Rs.200/-.

This suit is coming on this day for final disposal before Sri S.B.Gunjigavi, Addl.Civil Judge (Sr.Dn), Gulbarga in the presence of Sri M.Mallesappa, Advocate for plaintiff Addl.District Govt.,Pleader, Gulbarga for defendant No.1 and 2 and Sri Subhaschandra Kinagi, Advocate for Deft.No.3.

It is ordered and decreed that the suit of plaintiff is dismissed.

Under the facts and circumstances of the case, it is ordered that both the parties to bear their own cost.

Given under my hand and the seal of the Court on this the 12th day of January 2001.

Decree signed on
19.1.2001

Addl.Civil Judge (Sr.Dn),
Gulbarga.

Addl.Civil Judge (Sr.Dn)

Cost of the suit

	By plaintiff	By Defendants 1, 2 & 3
1. Court fee paid on plaint,	200.00	-
2. Court fee paid on power,	1.00	2.00
3. Court fee paid on process,	36.00	-
4. Pleader's fee,	CNF	CNF
	237.00	2.00

Ching
Addl. Civil Judge (Sr. Dn),
Gulbarga.

C.M.O.

Clerk,

17.
CERTIFICATE. I certify that this is
true and correct copy of the
original. I am not making any
modification.

TRUE COPY
Copyist Examiner
Dist. & Sessions Court
GULBARGA

10/12/11

29/12/14

22/12/14

23/12/14

27/12/14

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FINAL DECREE IN ORIGINAL SUIT

ANNEXURE-1

IN THE COURT OF THE ADDL.CIVIL JUDGE (SR.DN.) AT GULBARGA.

O.S.No.111/90

Date of Institution: 11.10.1990

Date of Disposal : 12.01.2001

Beerappa Bett a" Trust of Village Shahabad,
Tq.Chittapur, Dist.Gulbarga through its
Vide Chairman and Secretary respectively.

1. Jettappa S/o Nagappa Kuntan, age: Major,
Occ: Agrl. R/o Shahabad, Tq.Chittapur,
Dist.Gulbarga.
2. Annarao S/o Nagappa Kuntan, age: Major,
Occ: ABL Employee, R/o Shahabad, Tq.Chittapur.

-Vs-

... Plaintiffs

1. The State of Karnataka represented by the
Deputy Commissioner, Gulbarga Dist.Gulbarga.
2. The President H.K.E.Society, Gulbarga.
3. The Principal S.S.Margol College, Shahabad.

... Defendants

Claim : Suit for Declaration and Injunction of
waste land Sy.No.184 to the extent of
28 acres 25 guntas known as 'Parampok'
situated at Shahabad Tq.Chittapur,
Dist.Gulbarga and possession of one
acre in it with three years compensation
of Rs.1500/-.

Valuation : This suit is valued for the purpose of
jurisdiction and for Court fee at Rs.32000/-
and the total Court fee of Rs.3200/- is paid.

This suit is coming on this day for final disposal
before Sri S .B.Gunjigavi, Addl.Civil Judge (Sr.Dn),
Gulbarga in the presence of Sri M.Mallesappa, Advocate
for plaintiff and Addl.District Govt.,Pleader, Gulbarga for
defendant No.1, Sri Subhaschandra Kinggi, Advocate for
defendant No.2 and Sri R.A.Patil, Advocate for Deft.No.3.

It is ordered and decreed that the suit of the
plaintiff is dismissed.

Contd...2

Under the facts and circumstances of the case
it is ordered that both the parties to bear their
own cost.

Given under my hand and the seal of the Court
on this the 12th day of January 2001.

Decree signed on
19.1.2001

[Signature]
Addl. Civil Judge (Sr. Dn),
Gulbarga.

[Signature]
Addl. Civil Judge (Sr. Dn),
Gulbarga.

Cost of the suit

	By plaintiff	By Defendants	
		1 2 3	
1. Court fee paid on plaint,	3200.00	-	-
2. Court fee paid on power,	2.00	-	1.00 1.00
3. Court fee paid on process,	20.00	-	-
4. Pleader's fee	CNF	CNF	-
	3222.00	-	1.00 1.00

[Signature]
Addl. Civil Judge (Sr. Dn),
Gulbarga.

C.M.O.

Clerk,

*n. CERTIFICATE: Certified that copy of
the original is
the original
each and every...

RECEIVED
[Signature]
Copy to
C.M.O. Sessions Court
GULBARGA.

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(4)
CK-200-470116
Ashok S. Kiragi
A.S.I.
Memorandum of Decree in Regular Appeal
=====

ANNEXURE-F

In the Court of the yth Fast Track Court at Gulbarga.

R.A.No. 9/01

Date of Instn: 22.2.01/2.7.05

Date of Displ: 28.3.2007.

Before: Shri. S.C. Maradi
Presiding Officer,
Fast Track Court-yth,
Gulbarga.

a) The date on which the Application was ma
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b) The day c
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c) The d
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d) The d
18/2/16

1x Beerappa Betta Trust of village Shahabad
Tq: Chittapur Dist: Gulbarga through its Vice
Chairman and Secretary respectively.

f) The d
18/2/16

1. Jattappa S/o Nagappa Kautan Age: Major
Occ: Agril, R/o Shahabad Tq: Chittapur,
Dist: Gulbarga.

appeal d
19/2/16

g) The date of d
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applicant
19/2/16

h) Examiner
18/2/16

2. Annarao S/o Nagappa Age: Major Occ: A.B.L.
employee R/o SA Shahabad Tq: Chittapur,
Dist: Gulbarga.

.... Appellants.

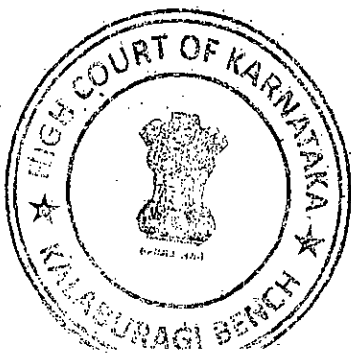
// Versus //

1. The State of Karnataka represented by the
Deputy commissioner, Gulbarga, Dist: Gulbarga.
2. The President H.K.E. Society, Gulbarga.
3. The principal S.S. Margole College,
Shahabad Tq: Chittapur, Dist: Gulbarga.
4. The Executive Engineer, Urban water supply and
Drainage board, Khuba plot, Gulbarga.

... Respondents.

This appeal is valued for the purpose of
Jurisdiction and Court fee Rs. 32,000/- and Court
Fee paid Rs. 3,200/-.

contnd... 2



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is received in Cash.

The Appeal from the decree of the Court of the
Addl. Civil Judge (Sr.Dn), Gulbarga, dated: 12.1.2001, in
O.S. 111/90 and O.S. 18/00.

Memorandum of Appeal

" Beerappa Betta " Trust of village Shahabad,
Tq: Chittapur Dist: Gulbarga through its Vice
Chairman and Secretary respectively.

1. Jettappa S/o Nagappa Kuntan Age: Major,
Occ: Agril, R/o Shahabad Tq: Chittapur,
Dist: Gulbarga.
2. Annarao S/o Nagappa Kuntan Age: Major, Occ:
A.B.L. Employee R/o Shahabad Tq: Chittapur.,
Dist: Gulbarga.

.... Plaintiffs

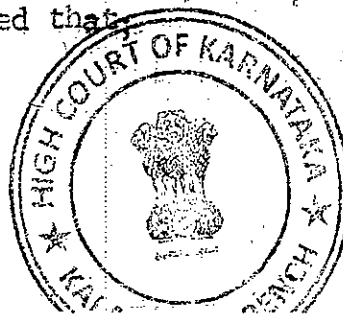
// Versus //

1. The State of Karnataka represented by the
Deputy Commissioner, Gulbarga Dist: Gulbarga.
2. The president H.K.E. Society Gulbarga.
3. The principal S.S. Margole College, Shahabad,
Tq: Chittapur, Dist: Gulbarga.

.... Defendants.

This appeal is coming on this day for
final disposal before Shri. S.G. Maradi, Presiding Officer
Vth, Fast Track Court, Gulbarga in the presence of
Shri. S.S. Siddapurkar Advocate for Appellants and
~~Shri~~ the District Govt. pleader for R-1, Shri. Subhash-
chandra Kinagi Advocate for R-2 and 3, Shri. R.S. Patil,
and Shri. Vijayapal Natekar Advocates for R-4, it is
ordered and decreed that

contnd...3

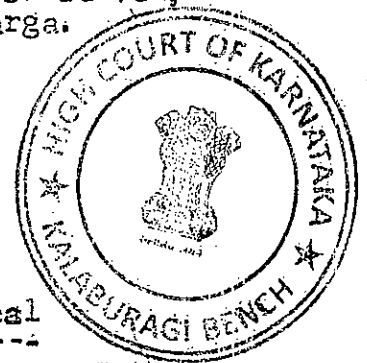


In the result, regular appeal filed by the appellants under section 96 R/w Order 41 Rule 1 of C.P.C. is hereby dismissed without cost. Consequently the common Judgement and decree passed in O.S.No.111/1990 and O.S.No.18/00 Dated: 12.1.2001 by the learned Additional Civil Judge (Sr.Dn) ,Gulbarga are hereby confirmed.

Decree signed on:
3.4.2007

[Signature]
Presiding Officer,
Fast Track Court-Vth,
Gulbarga.

[Signature]
Presiding Officer,
Fast Track Court-Vth,
Gulbarga.



Memorandum of Costs incurred in this Appeal

	Applt.	Respdt.
1. Court fee paid on Appeal Memo:	3200-00	-
2. Court fee paid on power:	1-00	2-00
3. Court fee paid on petition:	2-00	-
4. Court fee paid on Process:	72-00	-
5. pleaders fee:	112 1905-00	C.N.F.
Total:	5180-00	2-00

Schedule of Property

The waste land Sy.No. 184 to the extent of 28 acres 25 guntas known as "PARAMPOK" situated at Shahabad, Tq:Chittapur, Dist:Gulbarga and for Possession of one acre in it with three years compensation of Rs. 1500-00

[Signature]
Presiding Officer,
Fast Track Court-Vth,
Gulbarga

// Verified by //

[Signature]
Decree Clerk.

[Signature]
C.A.O.

True Copy
[Signature]
Section Officer 18/4
High Court of Karnataka

(25)

2024/9/4/2025
Babu Rao mangar

ANNEXURE-H

1

**IN THE HIGH COURT OF KARNATAKA
KALABURAGI BENCH**

DATED THIS THE 23RD DAY OF MAY, 2023

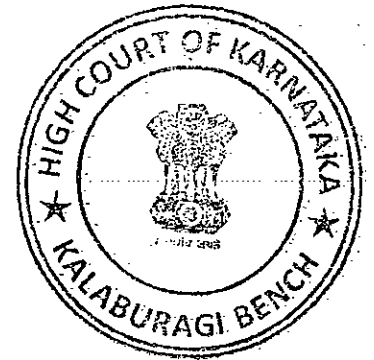
BEFORE

THE HON'BLE MR.JUSTICE C.M.POONACHA

RSA No.1870 OF 2007

BETWEEN

BEERAPPA BETTA TRUST OF
SHAHABAD VILLAGE
CHITTAPUR TALUK
GULBARGA DISTRICT 585104
REPRESENTED BY ITS VICE CHAIRMAN
AND SECRETARY RESPECTIVELY



1. JATTAPPA
S/O NAGAPPA KAUTAN
AGED ABOUT 74 YEARS
OCC: AGRICULTURE
2. ANNARAO
S/O NAGAPPA
AGED ABOUT 59 YEARS
OCC: RETD. ABL EMPLOYEE

THE APPELLANTS ARE
R/AT SHAHABAD VILLAGE
CHITTAPUR TALUK
GULBARGA DISTRICT 585104

...APPELLANTS.

(BY SRI SREEVATSA, SENIOR ADVOCATE A/W
SRI SANTOSH S NAGARALE AND
SRI V K NAIK, ADVOCATES)

AND

1. THE STATE OF KARNATAKA

This Certified Copy Contains 16 Pages.
and Copying Charges of Rs. 100/-
is received in Cash.

(20)

2

REP BY THE DEPUTY COMMISSIONER
GULBARGA DISTRICT
GULBARGA 585104

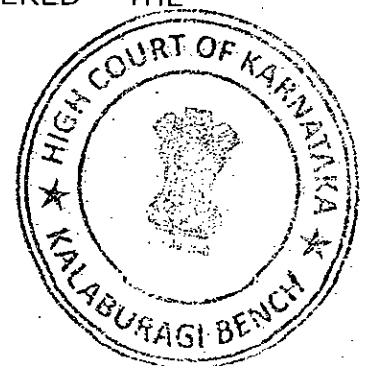
2. THE PRESIDENT
HYDERABAD KARNATAKA
EDUCATION SOCIETY
GULBARGA 585104
3. THE PRINCIPAL
S S MARGOLE COLLEGES
SHAHABAD VILLAGE
CHITTAPUR TALUK
GULBARGA DISTRICT 585104
4. THE EXECUTIVE ENGINEER
URBAN WATER SUPPLY AND
DRAINAGE BOARD
KHUBA POST
GULBARGA 585104

...RESPONDENTS

(BY SRI SHARANABASAPPA M. PATIL, HCGP FOR R1
SRI BABURAO MANGAME AND
SRI ASHOK MALANGE, ADVOCATES FOR R2 & R3
SRI CHAITANYA KUMAR C M, ADVOCATE FOR R4)

THIS RSA IS FILED U/S 100 OF CPC AGAINST THE JUDGEMENT AND DECREE DATED 28.03.2007 PASSED IN RA.NO.9/2001 ON THE FILE OF THE PRESIDING OFFICER, FAST TRACK COURT-V, GULBARGA, DISMISSING THE APPEAL AND CONFIRMING THE JUDGEMENT AND DECREE DATED 12.01.2001 PASSED IN OS.NO.111/1990 AND OS. NO.18/2000 ON THE FILE OF THE ADDL.CIVIL JUDGE (SR.DN.) GULBARGA, DISMISSING THE SUIT IN OS. NO.111/1990 FOR DECLARATION AND INJUNCTION AND DISMISSING THE SUIT IN OS. NO.18/2000 FOR INJUNCTION AND ETC.

THIS APPEAL HAVING BEEN HEARD AND RESERVED ON 23.02.2023, COMING ON FOR 'PRONOUNCEMENT OF JUDGMENT' THIS DAY, THE COURT DELIVERED THE FOLLOWING:



(27)

3

JUDGMENT

The above second appeal is filed by the Plaintiff under Section 100 of the Code of Civil Procedure, 1908 (hereinafter referred to as the 'CPC') seeking for the following reliefs:

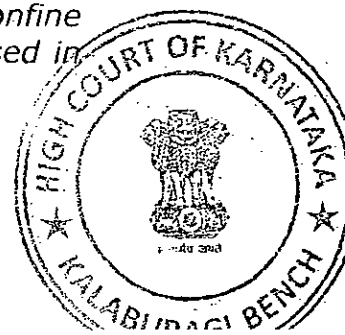
"To set aside the Judgment and decree in R.A. No.09/2001 dated 28.03.2007 passed by the learned Fast Track Court -V, Gulbarga, confirming the Judgment and decree passed in O.S. No.111/1990 and in O.S. No.18/2000 dated 12.01.2001 passed by the learned Addl. Civil Judge (Sr. Dn) Gulbarga, by allowing this Regular Second Appeal and decreeing O.S. No.111/1990 and O.S. No.18/2000 with costs in the interest of justice and equity."

2. This Court vide order dated 30.08.2013 framed the following substantial questions of law:

"1) Whether both, the trial court as well as First Appellate Court are right in ignoring the compromise decree effected in O.S.NO:88/1984 on the file of the then Munsiff Court, Chittapur, Dist. Gulbarga, dated: 17-1-1986?"

2) Whether the courts below could decide the nature of lands in service under Land Reforms Act in the current proceedings ?

3) Whether a single appeal is maintainable against the common judgment rendered in two original suits? and if not whether appellants can confine their appeal to the judgment and decree passed in any one of the suits?"

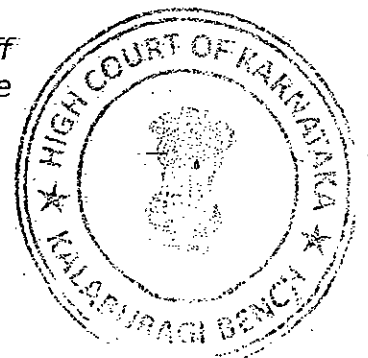


3. A detail appreciation of the case of the respective parties is unnecessary in view of substantial question of law No.3 regarding maintainability of a single appeal is required to be adjudicated upon and only if the same is answered in favour of the Appellant, then question of consideration of the case of the Appellant on merits would arise.

4. For the sake of convenience, the parties herein are referred to as per their rank before the Trial Court. The necessary facts for the purpose of adjudication of substantial question of law No.3 are considered hereunder:

5. The Plaintiff filed OS No.111/1990 seeking for the following reliefs:

- " 1. It may be declared that the Plaintiff is the owner of the land S.No.184 to the extent of 28 acres 25 guntas situated at Shahabad tq. Chittapur dist. Gulbarga.
2. A Decree of perpetual injunction may be granted restraining the Defendants from causing all sorts of interference and obstruction in the Plaintiffs possession over the suit land.
3. A Decree may be passed in favour of the Plaintiff directing the Defendant No.2 and 3 to deliver the



possession of one acres (277'x156') of Sy.No.184 of Shahabad as per plaint sketch by removing the structure on that area.

4. A Decree for recovery of ₹1500/- may be passed against the Defendant Nos.2 and 3 towards compensation of use and occupation of one acre of land for the last three years.

5. The future compensation at the same rate of ₹500/- per year till the possession is delivered may be awarded.

6. Costs of the suit may be allowed.

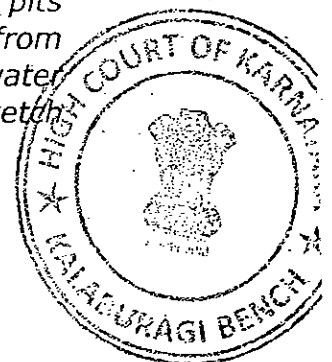
7. Any other relief to which the Plaintiff is entitled may be granted to meet ends of justice."

6. The suit property in said O.S.No.111/1990 described at para 2 of the plaint is as follows:

"2. The land S.No.184 measuring 29 acres 3 guntas known as "Parampok" situated at Shahabad taluk Chittapur and to the extent of one acre (277'x156') as per plaint sketch is hererinafter called the "suit property" excluding the 6 guntas used for Road and 12 guntas given to Water Works Department"

7. The Plaintiff in OS.No.111/1990 also filed OS. No.7/1991 seeking for the following reliefs:

"i) the Defendants be restrained from digging pits for laying water pipes in the red dotted area, and from making construction of room on northern side of water tank in the red-line mark area as shown in the sketch map of the suit property.



ii) the Defendants be directed to get fill the pits and make as it was before in the area as shown in red-colour in sketch map of the suit property by issue of mandatory injunction order.

iii) costs of suit be awarded.

iv) Any other relief which the hon'ble court deems fit be awarded."

8. The suit property described at para 2 of the plaint in said OS. No.7/1991 is as follows:

"2. That the description of the suit property is :

Land Sy.No.184 measuring 29 acres 3 guntas known as 'Parampok' situated at Shahabad tq. Chittapur. The sketch Map showing the portions in red colour and dots and line is enclosed."

9. Learned Senior Counsel for the Appellant/Plaintiff Sri.Sreevatsa in support of the contention that a single appeal is maintainable relied upon the following judgments:

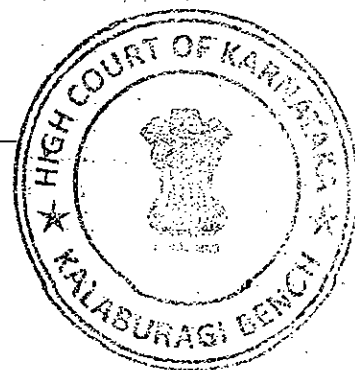
i. **Narhari and Others v. Shanker and Others**¹;

ii. **Mussammatt Lachhmi v. Mussammatt Bhulli**²;

iii. **Shanti Parshad and Ors. v. Kunj Lal**.³

¹ AIR 1953 SC 419

² ILR (1927) 8 Lah 384 (FB)



10. Per contra, Sri.Ashok Malange, learned Counsel for Respondent Nos.2 and 3 in support of his contention that a single appeal is not maintainable has relied upon the following judgments:

- i) **Karnataka State Agro Corn Products Ltd., v. M/s. Kerala Agro Seeds⁴;**
- ii) **Bhimanna s/o Chandrappa Maruthi v. Basanna, since dead by LRs,⁵.**

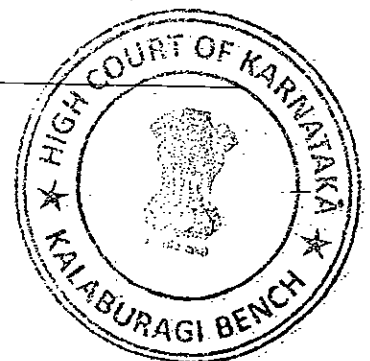
11. Sri.Sharanabasappa Patil, learned HCGP for Respondent No.1 and Sri.Chaitanya Kumar, learned Counsel for Respondent No.4 have supported the contention of the learned Counsel for Respondent Nos.2 and 3.

12. Before considering the legal question as to maintainability of a single appeal, it is necessary to notice the relevant factual aspects:

³ MANU/PH/0169/1953

⁴ RFA 554/212, DD 2.12.2019

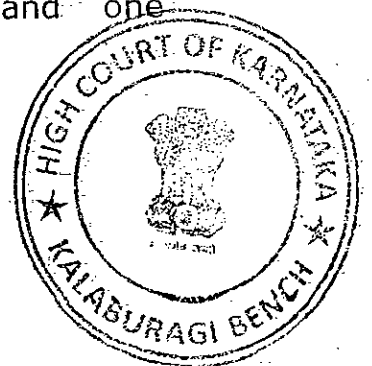
⁵ RSA No.3214/2007 c/w RSA No.3215/2007, DD.2.9.2022



(32)

13. Based on the pleadings of the parties, issues were framed in both the suits. In view of the establishment of the Munsiff/Civil Judge (Jr.Dn) Court at Shahabad, the suit in OS No.7/1991 was transferred to the said Court and re-numbered as OS No.17/1998. Consequent to the orders passed by the Hon'ble Principal District Judge, Gulbarga in Misc.Case No.24/1999 withdrawing the suit in OS No.17/1998 from the file of the Munsiff/Civil Judge (Jr.Dn), the said suit was transferred to the Court of the Additional Civil Judge (Sr.Dn), Gulbarga. After transfer, the same was re-numbered as O.S No.18/2000. Vide order dated 17.1.2000 passed on IA.6 in OS No.18/2000, the said suit was clubbed along with O.S No.111/1990. When the order for clubbing of the suits was passed, the Plaintiff in the said suits had already adduced evidence in both the suits.

14. In O.S. No.111/1990 one Sri. Annarao S/o. Nagappa has been examined as PW.1 and one

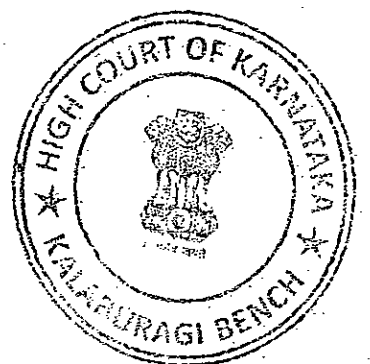


Shri.Shankarappa S/o. Ningappa has been examined as PW.2. Exs.P1 to P17 are marked in evidence.

15. In O.S. No.18/2000 Sri Annarao has been examined as PW.1, Smt. Chandramma has been examined as PW.2 and Shri. Jatappa has been examined as PW.3. Exs.P1 to P3 are marked in evidence.

16. Common evidence has been led in both the suits by the Defendants after the suits were clubbed. The Administrative Officer of the HKE - Society has been examined as DW.1 and Exs.D1 to D9 have been marked in evidence.

17. The Trial Court, on appreciation of the oral and documentary evidence, by its judgment and decree dated 12.1.2001 dismissed the said suits. Being aggrieved, the Plaintiff filed RA No.9/2001. The Defendants/Respondents entered appearance and contested the said proceedings. The First Appellate Court by its judgment dated 28.3.2007



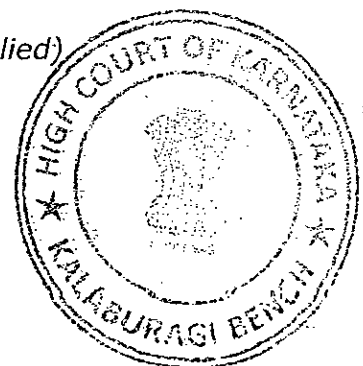
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dismissed R.A. No.9/2001. Being aggrieved the present second Appeal is filed.

18. The first Appellate Court while dismissing the appeal filed by the Appellant, at para 12 of the judgment has held as follows:

"12. That apart, being aggrieved by the judgment and decree passed by the trial court in the above said two suits the plaintiffs have preferred a single appeal on hand which is technically not correct. The plaintiffs ought to have preferred two separate appeals since relief claimed are two different in the respective suits. Hence, it has been argued by the learned counsel for the appellants that the reliefs claimed in O.S. No.111/1990 is for the relief of declaration and permanent injunction and for possession etc., and it is a comprehensive suit the plaintiffs have rightly challenged the common judgment of both suits in the present appeal and he has substantiated his contention. On the other hand, the learned counsels appearing for the respondents have seriously objected on this point and I am also of the considered opinion that they have rightly resisted the appeal on this ground because admittedly separate suits have been filed before the trial court for different reliefs, but common judgment has been passed for the sake of convenience since both suits are dismissed, the plaintiffs ought to have filed two separate appeals challenging the findings of the court below given in the respective suits on particular grounds, but it is not so. Even on this ground also the appellants are not entitled to succeed in this appeal."

(emphasis supplied)



19. A three Judge Bench of the Hon'ble Supreme Court in the case of **Premier Tyres Ltd., v. Kerala S.R.T.C.**⁶ after referring to a Constitution Bench decision in the case of **Badri Narayan Singh v. Kamdeo Prasad Singh**⁷ has held as follows:

"4.The question is what happens where no appeal is filed, as in this case from the decree in connected suit. Effect of non-filing of appeal against a judgment or decree is that it becomes final. This finality can be taken away only in accordance with law. Same consequences follow when a judgment or decree in a connected suit is not appealed from.

5. x x x x

6. Thus the finality of finding recorded in the connected suit, due to non-filing of appeal, precluded the court from proceeding with appeal in other suit. In any view of the matter the order of the High Court is not liable to interference."

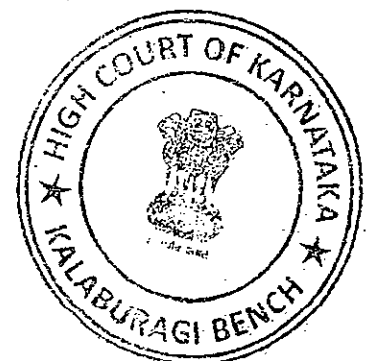
(emphasis supplied)

20. The Hon'ble Supreme Court in the case of **Harbans Singh v. Sant Hari Singh**⁸ after relying on the judgment in the case of **Premier Tyres**⁶ has held as follows:

⁶ 1993 Supp(2) SCC 146

⁷ AIR-1962 SC 338 : (1962) 3 SCR 759; 23 ELR 203

⁸ AIR 2009 SC 1819



(36)

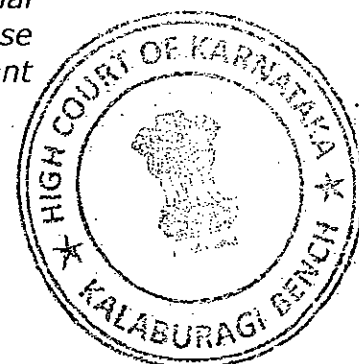
"13. Both the suits, as noticed hereinbefore, were consolidated. They were heard together. The disputes between the parties to both the suits were common. The issues raised therein also were common.

The Managing Committee filed a suit for declaration that it was in management and control of the said Gurudwara Sahib and was entitled thereto as also a declaration that the respondent was not a Mohtmim of the said Gurudwara and, thus, not entitled to manage its affairs. As the said decree had attained finality, it is binding on the appellants also. Appellants, therefore, in law, were required to prefer another Second Appeal against the judgment and decree passed in the said suit. The principle of res judicata in the aforementioned fact situation, in our opinion, has rightly been applied by the High Court."

(emphasis supplied)

21. In the case of **Karnataka State Agro Corn Products Limited**⁴ a Co-ordinate Bench of this Court, after referring to the judgments rendered in the case of **Premier Tyres**⁶ and **Harbans Singh**⁸ as well as the relevant statutory provisions, upon a detailed analysis of the legal position, has held as under:

"47. Having considered the facts of the case and that the Trial Court adjudicated the issue involved between the parties with regard to claim of the plaintiff and also with regard to counter claim made by the defendant and when the formal expression was made in respect of those independent claims by the parties, the appellant



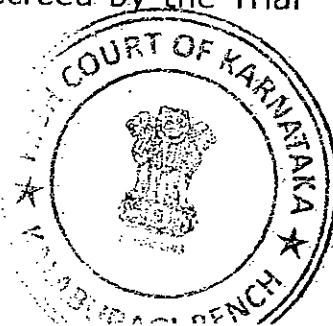
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ought to have filed a separate appeal against the decree, which it has suffered and also for the rejection of the counter claim made by the Court below since both are independent claims and the same has been adjudicated. Hence, I answer point No.3 in the affirmative that the single appeal is not maintainable."

22. The ratio laid down in the case of **Karnataka State Agro Corn Products Limited**⁴ has been followed by another Co-ordinate Bench of this Court in the case of **Bhimanna**⁵.

23. A Co-ordinate Bench of this Court in the case of **Mallanna v. Muninanjamma**⁹ also considering the question as to whether a single appeal is maintainable as against a common judgment has held that entertaining a single appeal challenging a common judgment is impermissible in law.

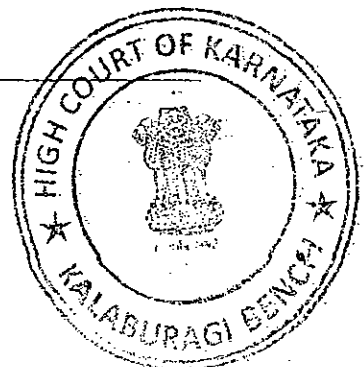
24. The case of **Narhari**¹ relied upon by the learned Senior Counsel for the Appellant is inapplicable to the facts of the present case, in as much as in the said case the suit filed by the Plaintiff was decreed by the Trial



Court and two separate appeals were filed by two sets of Defendants and the first Appellate Court allowed both the appeals and dismissed the suit of the Plaintiff by a common judgment. Being aggrieved, the Plaintiff filed two appeals before the High Court, one of which was barred by time. The High Court held that since one of the appeals is dismissed as barred by time, the other appeal also fails by application of the principle of *res judicata*, which judgment was interfered with. Since the factual matrix is wholly different, the said case will not aid the case of the Appellant.

25. The judgments in the case of **Mussammat Lachhmi**² and **Shanthi Parshad**³ relied upon by the Appellant are rendered by a Full Bench of the Lahore High Court and by a Division Bench of the Pepsu High Court, respectively. The legal position having been authoritatively laid down by the Hon'ble Supreme Court, as noticed in paras 19 and 20 hereinabove, the said judgments will not aid the case of the Appellant.

⁹ AIR 2001 KANT 205

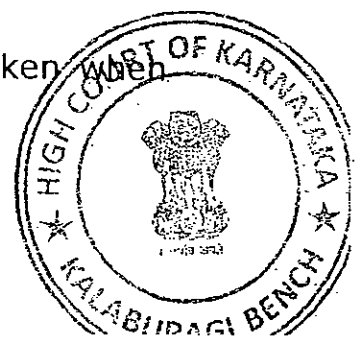


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26. Having regard to the settled position of law as held by the Hon'ble Supreme Court which is followed by the Co-ordinate Benches of this Court, as noticed in paras 19 to 23 hereinabove, the substantial question of law No.3 is answered in the negative, against the Appellant.

27. Learned Senior Counsel for the Appellant alternatively submitted that the appeal filed by the Appellant before the first Appellate Court could be construed as challenging the judgment and decree passed in OS.No.111/1990 as the said suit was filed for the larger reliefs of declaration, possession and injunction and the finding recorded in OS.No.7/1991 which was only for injunction will not survive for consideration of the appeal filed by the Appellant.

28. The said contention is liable to be rejected, in as much as the Appellant had not taken such a stand before the first Appellate Court to restrict RA.No.9/2001 as challenging the judgment and decree passed in OS.No.111/1990, nor such a plea/contention taken when



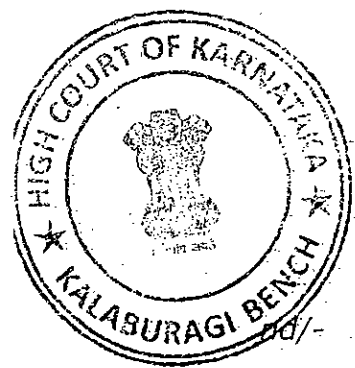
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the present second appeal was filed. No such averment is made in the Memorandum of Appeal also. In that view of the matter, the contention of the Appellant that a single appeal is maintainable is liable to be rejected.

29. In view of the substantial question of law No.3 having been answered in the negative, the other contentions put forth on the merits of the matter by the Appellant and the voluminous judgments cited by the Appellant in support of the said contentions are not dealt with. Accordingly, the appeal filed by the Appellant is dismissed.

No costs.

SD/-
JUDGE



- (a) The date on which the application was made..... 15/06/2023
- (b) The date on which charges and additional charges if any are called for..... 15/06/2023
- (c) The date on which charges and additional charges if any are demanded/paid..... 15/06/2023
- (d) The date on which the copy is ready..... 16/06/2023
- (e) The date on which the copy is ready for delivery..... 16/06/2023
- (f) The date on which the applicant is required to appear on or before..... 21/06/2023
- (g) The date on which copy is delivered to the applicant..... 16/06/2023
- (h) Examiner..... 16/06/2023

TRUE COPY

Section Officer
High Court of Karnataka
Kalaburagi Bench

(u)

IN THE SUPREME COURT OF INDIA
EXTRA-ORDINARY APPELLATE JURISDICTION

Petition for Special Leave to Appeal (Civil) No. 18822 OF 2023

WITH PRAYER FOR INTERIM RELIEF

BEERAPPA BETTA TRUST OF
SHAHABAD VILLAGE
REPRESENTED BY ITS VICE
CHAIRMAN AND SECRETARY
RESPECTIVELY

... Petitioner(s)

VERSUS

THE STATE OF KARNATAKA
AND OTHERS

... Respondent(s)

To,

1 THE STATE OF KARNATAKA,
REP BY THE DEPUTY
COMMISSIONER GULBARGA,
DISTRICT- GULBARGA-585104

PID: 194779/2023 FOR R[1] IN
SLP(C) NO:18822/2023 (SEC IV-
A)

2 THE PRESIDENT
HYDERABAD KARNATAKA
EDUCATION SOCIETY,
GULBARGA-585104

PID: 194780/2023 FOR R[2] IN
SLP(C) NO:18822/2023 (SEC IV-
A)

3 THE PRINCIPAL
SS MARGOLE COLLEGES
SHAHABAD VILLAGE
CHITTAPUR TALUK,
GULBARGA DISTRICT-585104

PID: 194781/2023 FOR R[3] IN
SLP(C) NO:18822/2023 (SEC IV-
A)

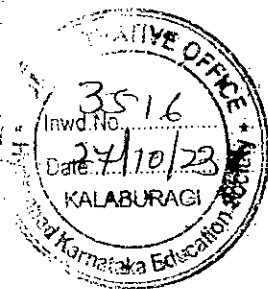
4 THE EXECUTIVE ENGINEER
URBAN WATER SUPPLY AND
DRAINAGE BOARD KHUBA POST,
GULBARGA- 585104

PID: 194782/2023 FOR R[4] IN
SLP(C) NO:18822/2023 (SEC IV-
A)

WHEREAS the Petition for SPECIAL LEAVE PETITION (CIVIL) to Appeal above mentioned (copy enclosed) filed in the Registry by Ms. ANJANA CHANDRASHEKAR Advocate on behalf of the Petitioner above named was listed for hearing before this Court on 25th September, 2023 when the Court was pleased to pass the following order:-

" Issue notice, returnable in six weeks."

NOW, THEREFORE, TAKE NOTICE that the above petition will be posted for hearing before this Court on 10th November, 2023 at 10.30 O' Clock in the forenoon or so soon thereafter as may be convenient to the Court when you may appear before the court either in person or through Counsel and show cause to the Court as to why Special Leave and interim relief as prayed for be not granted and the resultant appeal be not allowed.



You may file your affidavit in ^{immediately} opposition to the petition as provided under Rule 14(1), of Order XXI, S.C.R.2013 ~~within 30 days~~ from the date of receipt of notice or not later than 2 weeks before the date appointed for hearing, whichever be earlier, but shall do so only by setting out the grounds in opposition to the questions of law or grounds set out in the SLPs and may produce such pleadings and documents filed before the Court/Tribunal against whose order the SLP is filed and shall also set out the grounds for not granting interim order or for vacating interim order if already granted.

TAKE FURTHER NOTICE that if you fail to enter appearance as aforesaid, no further notice shall be given to you even after the grant of special leave for hearing of the resultant appeal and the matter above mentioned shall be disposed of in your absence.

Dated: 27th September, 2023

14/9/2023
ASSISTANT REGISTRAR

Copy to :-

1 Ms. Anjana Chandrashekar (adv.)

M. V. N. Raghupathy, Adv

14/9/2023
ASSISTANT REGISTRAR

Case Number

43

Diary Number

Case Number

CNR Number

AOR Code

Party Name

Court

DIARY NO. - 32825/2023

BEERAPPA BETTA TRUST OF SHAHABAD VILLAGE REPRESENTED BY ITS
VICE CHAIRMAN AND SECRETARY RESPECTIVELY VS. THE STATE OF
KARNATAKA

Case Details

Diary Number	32825/2023 Filed on 11-08-2023 03:17 PM [SECTION: IV-A]	PENDING
Case Number	SLP(C) No. 018822 - / 2023 Registered on 25-08-2023 (Verified On 20-09-2023)	
CNR Number	SCIN010328252023	
Present/Last Listed On	30-11-2023 [REGISTRAR (Court)]	
Status/Stage	Pending[] (Motion Hearing [AFTER NOTICE (FOR ADMISSION) - CIVIL CASES]) List before court/bench-Ord dt:30-11-2023	
Tentatively case may be listed on (likely to be listed on)	14-11-2025 (Computer generated)	
Category	0904-Civil Law : Transfer of Property Act, 1882 and Specific Relief Act, 1963 - matters arising out of suit for specific performance, declaration, injunction, possession or cancellation of deeds/documents	

uu

Petitioner(s) 1 BEERAPPA BETTA TRUST OF SHAHABAD VILLAGE
 REPRESENTED BY ITS VICE CHAIRMAN AND SECRETARY
 RESPECTIVELY
 1.1 JATTAPPA
 1.2 ANNARAO

Respondent(s) 1 THE STATE OF KARNATAKA
 2 THE PRESIDENT
 3 THE PRINCIPAL
 4 THE EXECUTIVE ENGINEER

Petitioner Advocate(s) ANJANA CHANDRASHEKAR

Respondent Advocate(s) SUPREETA SHARANAGOUDA[R-2]
 SUPREETA SHARANAGOUDA[R-3]
 SUDEEP KUMAR[R-4]

Argument Transcripts

+

Indexing

+

Earlier Court Details

S.No.	Court	Agency State	Agency Code	Case No.	Order Date	CNR No. / Designation	J J J
1	High Court	KARNATAKA	High Court of Karnataka at Kalaburagi	RSA-1870-2007	23-05-2023	111	C P J

Tagged Matters45

+

Listing Dates

+

Interlocutory Application Documents

+

Court Fees

+

Notices

+

Defects

+

Judgement/Orders

+

Mention Memo

+

Drop Note

+

Office Report

+

Similarities

+

Caveat

+

No. R

ಹೈದರಾಬಾದ್ ಕರ್ನಾಟಕ ಶಿಕ್ಷಣ ಸಂಘದ
ಎಸ್. ಎಸ್. ಮಾರ್ಗೋಲ ಕಲಾ, ವಿಜ್ಞಾನ
ಮತ್ತು ವಾಣಿಜ್ಯ ಕಾಲೇಜು
ಶಹಾಬಾದ್ - 585 228 - ಜಿ. ಕಾಳುಬುರ್ಗಿ



Hyderabad Karnataka Education Society's

**S. S. Margol College of Arts,
Science & Commerce**

SHAHABAD - 585 228 - Dist. Kalaburagi

Affiliated to Gulbarga University, Kalaburagi - NAAC Accredited 'B' Grade (3rd Cycle)
UGC 2(F)(ii)(3) - Email: principal@ssmargolcollege.org - Website: www.ssmargolcollege.org

Ref No. : HKE/SSMCAEST/2023-26/331

Date : 15.07.2025

To,
The Tahasildar
Shahabad - 585228
Dist. Kalaburagi

Respected Sir,

Sub: In regard to Inspection Conducted in Sy. No. 184 - reg.

This is to your kind information the Government of Karnataka (Government of Mysore) in file No. REV/835/LND/ENGR/ Dated: 31.08.1967 was pleased to allot the land Sy. No. 184 measuring 29 Acres 3 Guntas to HKE Society for construction of Degree College later the Beerappa Betta Trust claimed some part of the land. In the suit filed by the said trust in O. S. No. 111/1990 and 18/2000 by order dated 12/02/2001 and RSA No. 1870/2007 by order dated: 23/05/2023 the Hon'ble Court have repeatedly confirmed the ownership of HKE Society over this land.

Now the said Beerappa Betta Trust has filed SLP Civil No. 1822 of 2023 Before Hon'ble Supreme Court of India which is pending for consideration in that event any Survey in the Land Sy. No. 184 is barred. Hence this is a note of the same.

Enclosures:

1. Allotment Letter.
2. Hon'ble High Court of Karnataka, Kalaburagi Bench.
3. Supreme Court Judgment.

Copy To:

The Hon'ble President
H. K. E. Society
Kalaburagi - 585102

Principal
H.K.E.S.S. S. Margol College
of Arts, Science and Commerce,
SHAHABAD - 585228

ಎಸ್. ಎಸ್. ಮರಗೋಲ ಕಲಾ, ವಿಜ್ಞಾನ
ಮತ್ತು ವಾಣಿಜ್ಯ ಮಹಾವಿದ್ಯಾಲಯ
ಶಹಾಬಾದ್ - 585 228 - ಜಿ. ಕಲಬುರಗಿ



**S. S. Margol College of Arts,
Science & Commerce**
SHAHABAD - 585 228 - Dist. Kalaburagi

Affiliated to Gulbarga University, Kalaburagi - NAAC Accredited 'B' Grade (3rd Cycle)
UGC 2(f) & 12(B) - E-mail : principal@ssmargolcollege.org - Website : www.ssmargolcollege.org

Ref No. : HKES/SSMC/Est/ 2025-26 /352

Date : 06.08.2025

To,

The Hon'ble Ms. Fouzia Taranum, IAS
Deputy Commissioner & District Magistrate
Mini Vidhana Soudha, Timmapuri Circle
Kalaburagi - 585102
Karnataka

Respected Madam,

Sub: In regard to Inspection Conducted in Sy. No. 184.

This is to your kind information the Government of Karnataka (Government of Mysore) in file No. REV/835/LND/67-68/ Dated: 31.10.1967 was pleased to allot the land Sy. No. 184 measuring 29 Acres 3 Guntas to HKE Society for construction of Degree College later the Beerappa Betta Trust claimed some part of the land. In the suit filed by the said trust in O. S. No. 111/1990 and 18/2000 by order dated 12/01/2001 and RSA No. 1870/2007 by order dated: 23/05/2023 the Hon'ble Court have repeatedly confirmed the ownership of HKE Society over this land.

Now the said Beerappa Betta Trust has filed SLP Civil No. 1822 of 2023 Before Hon'ble Supreme Court of India which is pending for consideration in that event any Survey in the Land Sy. No. 184 is barred. Kindly take a note of the same.

Thanking you,

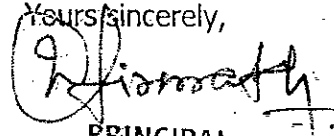
Enclosures:

1. Allotment Letter.
2. Hon'ble High Court of Karnataka, Kalaburagi Bench.
3. Supreme Court status copy.

Copy To:

The Hon'ble President
H. K. E. Society
Kalaburagi - 585102

Yours sincerely,


PRINCIPAL
H.K.E.S. S. S. Margol College
of Arts, Science and Commerce,
SHAHABAD-585 228

ಇವರಿಗೆ ಕಳುಹಿಸಲಾಗಿದೆ
ಜಿಲ್ಲಾಕಾರಿಗಳ ಕಾರ್ಯಾಲಯ
ಕಲಬುರಗಿ
ದಿನಾಂಕ 6-08-2025

48

ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು, ಕಲಬುರಗಿ ರವರ ನಡವಳಿಕೆಗಳು

ವಿಷಯ:- ಕಲಬುರಗಿ ಜಿಲ್ಲೆ, ಶಹಾಬಾದ ತಾಲೂಕಿನ ಶಹಾಬಾದ ಗ್ರಾಮದ ಸರಕಾರಿ ಸರ್ವೆ ನಂಬರ 184/*/* ರಲ್ಲಿ ಒಟ್ಟು ವಿಸ್ತೀರ್ಣ 27-38 ಎ-ಗು ಜಮೀನಿನ ಪೈಕಿ ವಿಸ್ತೀರ್ಣ 4-00 ಎಕರೆ ಜಮೀನು ಶಹಾಬಾದ ಪ್ರಜಾ ಸೌಧ ನಿರ್ಮಾಣಕ್ಕಾಗಿ ಕಾಯ್ದಿರಿಸುವ ಕುರಿತು.

ಉಲ್ಲೇಖ:- 1 ಸಹಾಯಕ ಆಯುಕ್ತರು, ಸೇಡಂ ಇವರ ಪತ್ರ ಸಂಖ್ಯೆ /ಜೂ.ಮಿ/211/2024-25 ದಿನಾಂಕ: 08.04.2025

2 ತಹಸೀಲ್ದಾರ್ ಶಹಾಬಾದ ಇವರ ಪತ್ರ ದಿನಾಂಕ: 02.03.2025

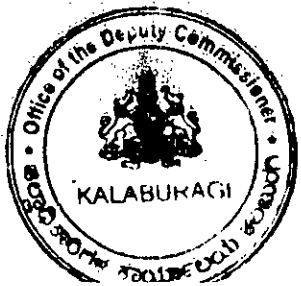
3 ತಹಸೀಲ್ದಾರ್ ಶಹಾಬಾದ ಇವರ ಅಧಿಸೂಚನೆ ದಿನಾಂಕ: 01.07.2024

4 ಕಾನೂನು ಸಲಹೆಗಾರರ ಅಭಿಪ್ರಾಯ ವರದಿ ದಿನಾಂಕ: 27.05.2025 (ಸ್ವೀಕೃತಿ: 23.06.2025)

ಪ್ರಸ್ತಾವನೆ:

ಉಲ್ಲೇಖಿತ-1 ಮತ್ತು 2 ಮೂಲಕ ಕಲಬುರಗಿ ಜಿಲ್ಲೆ, ಶಹಾಬಾದ ತಾಲೂಕಿನ ಶಹಾಬಾದ ಗ್ರಾಮದ ಸರಕಾರಿ ಸರ್ವೆ ನಂಬರ 184/*/* ರಲ್ಲಿ ವಿಸ್ತೀರ್ಣ 4-00 ಎಕರೆ ಜಮೀನು ಶಹಾಬಾದ ಪ್ರಜಾ ಸೌಧ ನಿರ್ಮಾಣಕ್ಕಾಗಿ ಜಮೀನು ಕಾಯ್ದಿರಿಸಲು ಪ್ರಸ್ತಾವನೆ ಸಲ್ಲಿಸಿದ್ದು, ಸದರಿ ಪ್ರಸ್ತಾವನೆಯಲ್ಲಿ ಸಹಾಯಕ ಆಯುಕ್ತರು, ಸೇಡಂ ಇವರು, ಶಹಾಬಾದ ನಗರದ ಹೃದಯ ಭಾಗದಲ್ಲಿರುವ ಸರ್ವೆ ನಂಬರ 184/*/* ರಲ್ಲಿರುವ ವಿಸ್ತೀರ್ಣ 27-38 ಎ-ಗು ಸರ್ಕಾರಿ ಪರಂಪರಾಳಿಕೆ ಎಂದು ನಮೂದಿಸಿರುವ ಸರ್ಕಾರಿ ಜಮೀನಿನ ಮೇಲೆ "ಬೀರಪ್ಪ ಬೆಟ್ಟ ಟ್ರಸ್ಟ್" ರವರು ಆರ್ ಎಸ್ ಎ ನಂಬರ 1870/2007 ದಿನಾಂಕ: 31.05.2022 ರ ಮೂಲಕ ಸರ್ಕಾರಿ ಜಮೀನು "ಬೀರಪ್ಪ ಬೆಟ್ಟ ಟ್ರಸ್ಟ್" (ನಮಗೆ) ಸೇರಿದೆ ಎಂದು ದಾವೆಯನ್ನು ಹೊರಡುತ್ತಾರೆ. ವಾಸ್ತವದಲ್ಲಿ ಬೀರಪ್ಪ ಗುಡಿಯು ಕೇವಲ 00-02 ವಿಸ್ತೀರ್ಣದಲ್ಲಿ ಮಾತ್ರ ಇರುತ್ತದೆ. ಆರ್.ಎಸ್.ಎ ನಂಬರ 1870/2007 ದಿನಾಂಕ: 31.05.2022 ರಲ್ಲಿ ಉಚ್ಚರಿಸುವ ಘನ ನ್ಯಾಯಾಲಯದಿಂದ Learned Counsel for the appellant called out, absent there is no representation on behalf of the appellant. The Order sheet reveals that time was sought regularly on, one other grounds. This appeal filed against the concurrent findings of the trial court and the first appellant have on interest prosecuting the appeal hence the appeal stands dismissed for non-prosecution ಎಂದು ಅದೇಶವನ್ನು ಹೊರಡಿಸಿರುತ್ತದೆ ಎಂದು ತಿಳಿಸಿ, ಕರ್ನಾಟಕ ಭೂ ಮಂಜೂರಾತಿ ನಿಯಮಗಳು-1966 ರ ನಿಯಮ 97 (1) ರ ನಿಯಮಾವಳಿಗಳ ಪ್ರಕಾರ ಪ್ರತಿ 100 ಜಾನುವಾರುಗಳಿಗೆ ವಿಸ್ತೀರ್ಣ 30-00 ಎಕರೆ ಜಮೀನು ರಂತೆ ಶಹಾಬಾದ ಗ್ರಾಮದಲ್ಲಿ ಒಟ್ಟು ಜಾನುವಾರುಗಳ ಸಂಖ್ಯೆ: 1329 ಇದ್ದು ಅವುಗಳಿಗೆ ಒಟ್ಟು ವಿಸ್ತೀರ್ಣ 400-00 ಎ-ಗು ಜಮೀನು ಮೀಸಲಿಡಬೇಕಾಗಿರುತ್ತದೆ. ಸದರಿ ಗ್ರಾಮದಲ್ಲಿ ಒಟ್ಟು ವಿಸ್ತೀರ್ಣ 365-18 ಎ-ಗು ಸರ್ಕಾರಿ ಜಮೀನಿರುತ್ತದೆ. ಆದರೆ ಜಾನುವಾರುಗಳಿಗೆ ಗೋಮಾಳ ಜಮೀನು ಕೊರತೆಯಿರುತ್ತದೆ ಎಂದು ತಿಳಿಸಿ, ಶಹಾಬಾದ ಪ್ರಜಾಸೌಧ ನಿರ್ಮಾಣಕ್ಕಾಗಿ ಜಮೀನು ಕರ್ನಾಟಕ ಭೂ ಕಂದಾಯ ನಿಯಮಗಳು 1969 ರ ನಿಯಮ 71 ರಡಿಯಲ್ಲಿ ಕಾಯ್ದಿರಿಸಲು ಸೂಕ್ತವಿರುತ್ತದೆ ಎಂದು ವರದಿಸಿ, ಸದರಿ ವರದಿ / ಪ್ರಸ್ತಾವನೆಯೊಂದಿಗೆ 1] ಕಂದಾಯ ನೀರಿಕ್ಷಕರ ವರದಿ, ಸ್ವೀಚ್ ನಕಾಶೆ, ಕೈಬರಹ ಆರ್.ಟಿ.ಸಿ, ಜಾನುವಾರುಗಳ ತಖ್ತೆ ಹಾಗೂ ಮಾನ್ಯ ನ್ಯಾಯಾಲಯದ ಆದೇಶದ ಪ್ರತಿಯನ್ನು ಉಗತ್ತಿಸಿ ಪ್ರಸ್ತಾವನೆಯನ್ನು ಈ ಕಚೇರಿಗೆ ಸಲ್ಲಿಸಿರುತ್ತಾರೆ.

೨೫ ಪ್ರತಿ



ಉಲ್ಲೇಖಿತ-3 ರ ಅಧಿಸೂಚನೆ ಮೂಲಕ ತಹಸೀಲ್ದಾರ್ ಶಹಾಬಾದ ಇವರು, ಕರ್ನಾಟಕ ಭೂ ಮಂಜೂರಾತಿ ನಿಯಮಗಳು 1969 ರ ನಿಯಮ 03 ರನ್ವಯ ಎಲ್ಲಾ ಗ್ರಾಮಗಳಲ್ಲಿ ವಿಲೇ ಮಾಡಲು ಲಭ್ಯವಿರುವ ಸರಕಾರಿ ಜಮೀನುಗಳ ಭೂ ಲಭ್ಯತಾ ಪಟ್ಟಿಯನ್ನು ಪ್ರಚೂರಪಡಿಸಿದ್ದು, ಸರಕಾರಿ ಜಮೀನು ಲಭ್ಯವಿರುವುದಿಲ್ಲವೆಂದು ಅಧಿಸೂಚನೆ ಮೂಲಕ ತಿಳಿಸಿರುತ್ತಾರೆ ಹಾಗೂ ಸದರಿ ಗ್ರಾಮದಲ್ಲಿ ಜಾನುವಾರುಗಳ ಸಂಖ್ಯೆ: 1329 ಇದ್ದು, ಜಾನುವಾರುಗಳಿಗೆ ಅನುಗುಣವಾಗಿ ಸರಕಾರಿ ಜಮೀನು ಕಡಿಮೆ ಇರುತ್ತದೆ.

ಉಲ್ಲೇಖಿತ-4 ರ ಮೂಲಕ ಕಾನೂನು ಸಲಹೆಗಾರರಿಂದ ಅಭಿಪ್ರಾಯ ವರದಿ ಪಡೆಯಲಾಗಿದ್ದು, ಈ ಕೆಳಕಂಡಂತೆ ಇರುತ್ತದೆ.

"To set aside the Judgment and decree in RA.No.09/2001 dated 28.03.2007 passed by the learned Fast Track Court -V, Gulbarga, confirming the Judgment and decree passed in O.S. No.111/1990 and in O.S. No.18/2000 dated 12.01.2001 passed by the learned Addl. Civil Judge (Sr. Dn) Gulbarga, by allowing this Regular Second Appeal and decreeing O.S. No.111/1990 and O.S. No.18/2000 with costs in the interest of justice and equity."

"Thus, it is clear that earlier suits filed concerning this land were dismissed by the Courts. When the matter reached the High Court, it also dismissed the appeal. Now, no case appears to be pending relating this land. No rights of anyone are declared relating to the said land. Therefore, further necessary actions may be taken" ಎಂದು ಅಭಿಪ್ರಾಯ ವರದಿಯನ್ನು ಸಲ್ಲಿಸಿರುತ್ತಾರೆ.

ಪ್ರಾಯುಕ್ತ ಸಹಾಯಕ ಆಯುಕ್ತರು, ಸೇಡಂ ಹಾಗೂ ತಹಸೀಲ್ದಾರ್ ಶಹಾಬಾದ ಇವರ ಪ್ರಸ್ತಾವನೆಯ ಮೇರೆಗೆ ಹಾಗೂ ಕಾನೂನು ಸಲಹೆಗಾರರ ಅಭಿಪ್ರಾಯ ವರದಿಯಂತೆ ಮತ್ತು ಸದರಿ ಪ್ರಸ್ತಾವಿತ ಜಮೀನು ಸರಕಾರಿ ಪರಂಪರಾತ್ಮಕ ಜಮೀನಾಗಿರುವುದರಿಂದ ಕಲಬುರಗಿ ಜಿಲ್ಲೆಯ, ಶಹಾಬಾದ ತಾಲೂಕಿನ ಶಹಾಬಾದ ಗ್ರಾಮದ ಸರಕಾರಿ ಸರ್ವೆ ನಂಬರ 184/*/* ರಲ್ಲಿ ವಿಸ್ತೀರ್ಣ 4-00 ಎಕರೆ ಜಮೀನು "ಶಹಾಬಾದ ಪ್ರಜಾ ಸೌಧ ನಿರ್ಮಾಣಕ್ಕಾಗಿ" ಕರ್ನಾಟಕ ಭೂ ಕಂದಾಯ ಕಾಯ್ದೆ-1964 ರ ಕಲಂ 71 ರಡಿ ಪ್ರದತ್ತ ಅಧಿಕಾರ ಚಲಾಯಿಸಿ "ಕಂದಾಯ ಇಲಾಖೆ ಕರ್ನಾಟಕ ಸರಕಾರ" ಹೆಸರಿಗೆ ಕಾಯ್ದಿರಿಸಲು ಈ ಕೆಳಕಂಡಂತೆ ಆದೇಶ.

ಆದೇಶ

ಸಂಖ್ಯೆ / ಕಂದಾಯ / ಭೂಮಿ / 03/ 2025-26

ದಿನಾಂಕ: 18/07/2025

ಪ್ರಸ್ತಾವನೆಯಲ್ಲಿ ವಿವರಿಸಿದಂತೆ, ಕಲಬುರಗಿ ಜಿಲ್ಲೆಯ, ಶಹಾಬಾದ ತಾಲೂಕಿನ ಶಹಾಬಾದ ಗ್ರಾಮದ ಸರ್ವೆ ನಂಬರ 184/*/* ರಲ್ಲಿ ವಿಸ್ತೀರ್ಣ 4-00 ಎಕರೆ ಜಮೀನು ಶಹಾಬಾದ ಪ್ರಜಾಸೌಧ ನಿರ್ಮಾಣಕ್ಕಾಗಿ ಕರ್ನಾಟಕ ಭೂ ಕಂದಾಯ ಅಧಿನಿಯಮ-1964ರ ಕಲಂ 71 ರಡಿ ಪ್ರದತ್ತ ಅಧಿಕಾರ ಚಲಾಯಿಸಿ "ಕಂದಾಯ ಇಲಾಖೆ ಕರ್ನಾಟಕ ಸರಕಾರ" ಹೆಸರಿಗೆ ಈ ಕೆಳಕಂಡ ಷರತ್ತುಗಳೊಳಗೆ ಪಡಿಸಿ ಕಾಯ್ದಿರಿಸಿ ಆದೇಶಿಸಿದೆ.

ನಕಲಾ ಕೃತಿ

ಕಲಬುರಗಿ ಜಿಲ್ಲೆಯ, ಶಹಾಬಾದ ತಾಲೂಕಿನ ಶಹಾಬಾದ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ. 184/*/* ರಲ್ಲಿ 4-00 ಜಮೀನಿನಲ್ಲಿ ಪ್ರಜಾ ಸೌಧ ನಿರ್ಮಾಣದ ಜಮೀನಿನ ಚೆಕ್ ಬಂದಿ (ಸ್ಕೀಚ್ ನಕಾಶೆಯಲ್ಲಿ ವಿವರಿಸಿದಂತೆ)

ಸರ್ವೆ ನಂ.	ಪೂರ್ವ	ಪಶ್ಚಿಮ	ಉತ್ತರ	ದಕ್ಷಿಣ
184/*/*	ಉಳಿದ ಜಮೀನು	ಉಳಿದ ಜಮೀನು	ಉಳಿದ ಜಮೀನು	ರಸ್ತೆ



ಪರತ್ನಗಳು:

1. ಕಾಯ್ದಿರಿಸಿದ ಜಮೀನನ್ನು ಕಂದಾಯ ಇಲಾಖೆಯ ಅನುಮತಿ ಇಲ್ಲದೇ ಮಾರಾಟ ಮಾಡುವುದಾಗಲಿ ಗುತ್ತಿಗೆ / ಉಪಗುತ್ತಿಗೆ ನೀಡುವುದಾಗಲಿ, ಅಡಮಾನ, ಮಾರ್ಗವಣಿ ದಾಖ, ಇತರ ಯಾವುದೇ ರೀತಿಯ ಪರಭಾರೆ ಮಾಡತಕ್ಕದಲ್ಲ.
2. ಕಾಯ್ದಿರಿಸಿದ ಜಮೀನನ್ನು ಎರಡು ವರ್ಷಗಳ ಅವಧಿಯೊಳಗೆ ಪ್ರಸ್ತಾವಿತ ಉದ್ದೇಶಕ್ಕೆ ಉಪಯೋಗಿಸದೇ ಇದ್ದಲ್ಲಿ ಕಾಯ್ದಿರಿಸಿದ ಆದೇಶವನ್ನು ರದ್ದುಪಡಿಸಿ ಕಂದಾಯ ಇಲಾಖೆಯ ವಶಕ್ಕೆ ಪಡೆಯುವುದು.
3. ಕಾಯ್ದಿರಿಸಿದ ಜಮೀನನ್ನು ವಿನಾಶಕಾರಿಯಾದ ಅಥವಾ ಖಾಯಂ ಆಗಿ ಹಾನಿಕಾರಕವಾಗುವ ರೀತಿಯಲ್ಲಿ ಬಳಸತಕ್ಕದಲ್ಲ.
4. ಕಾಯ್ದಿರಿಸಿದ ಜಮೀನಿನಲ್ಲಿ ಯಾವುದೇ ರೀತಿಯ ಅತಿಕ್ರಮಣವಾಗದಂತೆ ಕ್ರಮವಹಿಸತಕ್ಕದು.
5. ಕಾಯ್ದಿರಿಸಿದ ಜಮೀನಿನಲ್ಲಿ ಅಭಿವೃದ್ಧಿ ಕಾರ್ಯಗಳನ್ನು ಪ್ರಾರಂಭಿಸುವ ಪೂರ್ವದಲ್ಲಿ ಶಾಸನಬದ್ಧವಾಗಿ ಪಡೆಯಬೇಕಾದ ಪರವಾನಿಗಳನ್ನು ಸಂಬಂಧಿತ ಪ್ರಾಧಿಕಾರಿಗಳಿಂದ ಪಡೆಯತಕ್ಕದು ಹಾಗೂ ನಿಯಮಾನುಸಾರ ಪಾವತಿಸಬೇಕಾದ ಎಲ್ಲಾ ರೀತಿಯ ಶುಲ್ಕಗಳನ್ನು ಕಡ್ಡಾಯವಾಗಿ ಪಾವತಿಸತಕ್ಕದು.

ಪ್ರತಿಯನ್ನು:

1. ಮಾನ್ಯ ಸರಕಾರದ ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿಗಳು, ಕಂದಾಯ ಇಲಾಖೆ ಬೆಂಗಳೂರು ಇವರ ದಯಾಪರ ಮಾಹಿತಿಗಾಗಿ ಸಲ್ಲಿಸಲಾಗಿದೆ.
2. ಮಾನ್ಯ ಪ್ರಾದೇಶಿಕ ಆಯುಕ್ತರು, ಕಲಬುರಗಿ ವಿಭಾಗ ಕಲಬುರಗಿ ಇವರ ದಯಾಪರ ಮಾಹಿತಿಗಾಗಿ ಸಲ್ಲಿಸಲಾಗಿದೆ.
3. ಸಹಾಯಕ ಆಯುಕ್ತರು, ಸೇಡಂ ಇವರಿಗೆ ಮಾಹಿತಿಗಾಗಿ ಹಾಗೂ ಸೂಕ್ತ ಕ್ರಮಕ್ಕಾಗಿ ಕಳುಹಿಸಲಾಗಿದೆ.
4. ತಹಸೀಲ್ದಾರರು, ಶಹಾಬಾದ ಇವರಿಗೆ ಸೂಕ್ತ ಕ್ರಮಕ್ಕಾಗಿ ಕಳುಹಿಸಲಾಗಿದೆ.
5. ಕಾರ್ಯನಿರ್ವಾಹಕ ಅಧಿಕಾರಿಗಳು, ತಾಲೂಕು ಪಂಚಾಯತ ಚಿತ್ತಾಪುರ ಇವರಿಗೆ ಮಾಹಿತಿಗಾಗಿ ಹಾಗೂ ಸೂಕ್ತ ಕ್ರಮಕ್ಕಾಗಿ ಕಳುಹಿಸಲಾಗಿದೆ.
6. ಉಪ-ನೋಂದಾಣಾಧಿಕಾರಿಗಳು, ಚಿತ್ತಾಪುರ ಇವರಿಗೆ ಸೂಕ್ತ ಕ್ರಮಕ್ಕಾಗಿ ಕಳುಹಿಸಲಾಗಿದೆ.
7. ಭೂಮಿ ಆಪರೇಟರ್ ತಹಸೀಲ ಕಾರ್ಯಾಲಯ ಶಹಾಬಾದ ಇವರಿಗೆ ಆಗತ್ಯ ಕ್ರಮಕ್ಕಾಗಿ.

ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು
ಕಲಬುರಗಿ.

ಕಂಪ್ಯೂಟರ್

ಇ ಸಂಖ್ಯೆ ದಿನಾಂಕ 15/9/25
ಈ ತಯಾರಿಸಿದ ದಿನಾಂಕ 15/9/25
ಈ ಕೌಪಿ ದಿನಾಂಕ 15/9/25
ಗ್ರಹ ಸಂಖ್ಯೆ 9
ಈ 3
ಇದರಲ್ಲಿ 3
ಇದರಲ್ಲಿ 3

ಈ ಕಾರ್ಯದ ಪ್ರಾಯಸ್ಕ ಶ್ರೀ Administrator office,
ರವರಿ ಕಾನೂನಿನ ಪ್ರಕಾರ ಸಂಖ್ಯೆ 11KE Society,
516.
15/9/25
ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು ಕಲಬುರಗಿ
ಈ ಕಾರ್ಯದ ಪ್ರಾಯಸ್ಕ